

FLOOR AMENDMENT

HOUSE OF REPRESENTATIVES

State of Oklahoma

SPEAKER:

CHAIR:

I move to amend SB625 _____
Of the printed Bill
Page _____ Section _____ Lines _____
Of the Engrossed Bill

By deleting the content of the entire measure, and by inserting in lieu thereof the following language:

AMEND TITLE TO CONFORM TO AMENDMENTS

Adopted: _____

Amendment submitted by: Erick Harris

Reading Clerk

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR

SENATE BILL NO. 625

By: Howard of the Senate

and

Harris of the House

FLOOR SUBSTITUTE

An Act relating to dissolution of marriage; amending 43 O.S. 2021, Section 110, as amended by Section 3, Chapter 189, O.S.L. 2024 (43 O.S. Supp. 2024, Section 110), which relates to automatic temporary injunction and temporary orders; modifying time frame for setting hearing for certain temporary orders; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 43 O.S. 2021, Section 110, as amended by Section 3, Chapter 189, O.S.L. 2024 (43 O.S. Supp. 2024, Section 110), is amended to read as follows:

Section 110. A. 1. Except as otherwise provided by this subsection, upon the filing of a petition for dissolution of marriage, annulment of a marriage or legal separation by the petitioner and upon personal service of the petition and summons on the respondent, or upon waiver and acceptance of service by the

1 respondent, an automatic temporary injunction shall be in effect
2 against both parties pursuant to the provisions of this section:

3 a. restraining the parties from transferring,
4 encumbering, concealing, or in any way disposing of,
5 without the written consent of the other party or an
6 order of the court, any marital property, except in
7 the usual course of business, for the purpose of
8 retaining an attorney for the case or for the
9 necessities of life and requiring each party to notify
10 the other party of any proposed extraordinary
11 expenditures and to account to the court for all
12 extraordinary expenditures made after the injunction
13 is in effect,

14 b. restraining the parties from:

- 15 (1) intentionally or knowingly damaging or destroying
16 the tangible property of the parties, or of
17 either of them, specifically including, but not
18 limited to, any electronically stored materials,
19 electronic communications, social network data,
20 financial records, and any document that
21 represents or embodies anything of value,
22 (2) making any withdrawal for any purpose from any
23 retirement, profit-sharing, pension, death, or
24 other employee benefit plan or employee savings

1 plan or from any individual retirement account or
2 Keogh account,

3 (3) withdrawing or borrowing in any manner all or any
4 part of the cash surrender value of any life
5 insurance policies on either party or their
6 children,

7 (4) changing or in any manner altering the
8 beneficiary designation on any life insurance
9 policies on the life of either party or any of
10 their children,

11 (5) canceling, altering, or in any manner affecting
12 any casualty, automobile, or health insurance
13 policies insuring the parties' property or
14 persons,

15 (6) opening or diverting mail addressed to the other
16 party, and

17 (7) signing or endorsing the other party's name on
18 any negotiable instrument, check, or draft, such
19 as tax refunds, insurance payments, and
20 dividends, or attempting to negotiate any
21 negotiable instruments payable to either party
22 without the personal signature of the other
23 party,

- 1 c. requiring the parties to maintain all presently
2 existing health, property, life and other insurance
3 which the individual is presently carrying on any
4 member of this family unit, and to cooperate as
5 necessary in the filing and processing of claims. Any
6 employer-provided health insurance currently in
7 existence shall remain in full force and effect for
8 all family members,
- 9 d. enjoining both parties from molesting or disturbing
10 the peace of the other party or of the children to the
11 marriage,
- 12 e. restraining both parties from disrupting or
13 withdrawing their children from an educational
14 facility and programs where the children historically
15 have been enrolled, or day care,
- 16 f. restraining both parties from hiding or secreting
17 their children from the other party,
- 18 g. restraining both parties from removing the minor
19 children of the parties, if any, beyond the
20 jurisdiction of the State of Oklahoma, acting directly
21 or in concert with others, except for vacations of two
22 (2) weeks or less duration, without the prior written
23 consent of the other party, which shall not be
24 unreasonably withheld, and

1 h. requiring, unless otherwise agreed upon by the parties
2 in writing, the delivery by each party to the other
3 within thirty (30) days from the earlier of either the
4 date of service of the summons or the filing of an
5 initial pleading by the respondent, the following
6 documents:

7 (1) the federal and state income tax returns of each
8 party for the past two (2) years and any
9 nonpublic, limited partnership and privately held
10 corporate returns for any entity in which either
11 party has an interest, together with all
12 supporting documentation for the tax returns,
13 including but not limited to W-2 forms, 1099
14 forms, K-1 forms, Schedule C and Schedule E. If
15 a return is not completed at the time of
16 disclosure, the parties shall provide the
17 documents necessary to prepare the tax return of
18 the party, to include W-2 forms, 1099 forms, K-1
19 forms, copies of extension requests and estimated
20 tax payments,

21 (2) two (2) months of the most recent pay stubs from
22 each employer for whom the party worked,

23 (3) statements for the past six (6) months for all
24 bank accounts held in the name of either party

1 individually or jointly, or in the name of
2 another person for the benefit of either party,
3 or held by either party for the benefit of the
4 minor child or children of the parties,

5 (4) documentation regarding the cost and nature of
6 available health insurance coverage for the
7 benefit of either party or the minor child or
8 children of the parties,

9 (5) documentation regarding the cost and nature of
10 employment or educationally related child care
11 expenses incurred for the benefit of the minor
12 child or children of the parties, and

13 (6) documentation regarding all debts in the name of
14 either party individually or jointly, showing the
15 most recent balance due and payment terms.

16 2. If either party is not in possession of a document required
17 pursuant to subparagraph h of paragraph 1 of this subsection or has
18 not been able to obtain the document in a timely fashion, the party
19 shall state in verified writing, under the penalty of perjury, the
20 specific document which is not available, the reasons the document
21 is not available, and what efforts have been made to obtain the
22 document. As more information becomes available, there is a
23 continuing duty to supplement the disclosures.
24

1 3. Nothing in this subsection shall prohibit a party from
2 conducting further discovery pursuant to the Oklahoma Discovery
3 Code.

4 4. a. The provisions of the automatic temporary injunction
5 shall be printed as an attachment to the summons and
6 the petition and entitled "Automatic Temporary
7 Injunction Notice".

8 b. The automatic temporary injunction notice shall
9 contain a provision which will allow the parties to
10 waive the automatic temporary injunction. In
11 addition, the provision must state that unless both
12 parties have agreed and have signed their names in the
13 space provided, that the automatic temporary
14 injunction will be effective. Along with the waiver
15 provision, the notice shall contain a check box and
16 space available for the signatures of the parties.

17 5. The automatic temporary injunction shall become an order of
18 the court upon fulfillment of the requirements of paragraph 1 of
19 this subsection unless and until:

20 a. the automatic temporary injunction is waived by the
21 parties. Both parties must indicate on the automatic
22 temporary injunction notice in the space provided that
23 the parties have both agreed to waive the automatic
24

1 temporary injunction. Each party must sign his or her
2 own name on the notice in the space provided, or

3 b. a party, no later than three (3) days after service on
4 the party, files an objection to the injunction and
5 requests a hearing. Provided, the automatic temporary
6 injunction shall remain in effect until the hearing
7 and a judge orders the injunction removed.

8 6. The automatic temporary injunction shall be dissolved upon
9 the granting of the dissolution of marriage, final order of legal
10 separation or other final order.

11 7. Nothing in this subsection shall preclude either party from
12 applying to the court for further temporary orders, pursuant to this
13 section, an expanded automatic temporary injunction, or modification
14 or revocation thereto.

15 8. a. With regard to an automatic temporary injunction, when
16 a petition for dissolution of marriage, annulment of a
17 marriage, or a legal separation is filed and served, a
18 peace officer shall use every reasonable means to
19 enforce the injunction which enjoins both parties from
20 molesting or disturbing the peace of the other party
21 or the children of the marriage against a petitioner
22 or respondent, whenever:

23 (1) there is exhibited by a respondent or by the
24 petitioner to the peace officer a copy of the

petition or summons, with an attached Temporary Injunction Notice, duly filed and issued pursuant to this section, together with a certified copy of the affidavit of service of process or a certified copy of the waiver and acceptance of service, and

(2) the peace officer has cause to believe that a violation of the automatic temporary injunction has occurred.

b. A peace officer shall not be held civilly or criminally liable for his or her action pursuant to this paragraph if his or her action is in good faith and without malice.

B. After a petition has been filed in an action for dissolution of marriage or legal separation either party may request the court to issue:

1. A temporary order:

- a. regarding child custody, support or visitation,
- b. regarding spousal maintenance,
- c. regarding payment of debt,
- d. regarding possession of property,
- e. regarding attorney fees, and
- f. providing other injunctive relief proper in the circumstances.

1 All applications for temporary orders shall set forth the
2 factual basis for the application and shall be verified by the party
3 seeking relief. The application and a notice of hearing shall be
4 served on the other party in any manner provided for in the Rules of
5 Civil Procedure;

6 2. A temporary order. If domestic abuse is not alleged, when
7 setting a hearing to enter temporary orders, the court shall conduct
8 a substantive hearing and issue a ruling on custody, visitation,
9 child support, and other ancillary matters, including property. The
10 court shall schedule the hearing to take place within thirty (30)
11 days from the date that the application for temporary orders is
12 presented to the court for scheduling by the moving party, unless
13 the parties agree in writing to waive this requirement, and said
14 agreement is memorialized by an order of the court. The moving
15 party shall provide at least five (5) days' notice of hearing to the
16 nonmoving party;

17 3. A temporary order. In an application for a temporary order,
18 any party alleging acts of domestic abuse, as defined by Section 109
19 of this title, against the other party, or the minor child or
20 children at issue and either of the following are present:

- 21 a. the moving party has been granted a temporary or
22 permanent order of protection against the other party
23 for domestic abuse committed against the moving party
24 or the minor child or children at issue, or

1 b. the party against whom domestic violence has been
2 alleged has been charged in any criminal proceeding,
3 within the past five (5) years, with an act of
4 domestic abuse wherein the moving party or a child of
5 the party alleging domestic abuse is the victim,
6 the court shall set a hearing upon application within ten (10) days
7 ~~of filing~~ from the date that the application for a temporary order
8 is presented to the court for scheduling by the moving party, with
9 the moving party providing five (5) days' notice of hearing to the
10 nonmoving party unless waived by both parties, and memorialized by
11 an order of the court. The court shall conduct a substantive
12 hearing and issue a ruling on custody, visitation, child support,
13 and other ancillary matters, including property. The requesting
14 party shall attach a certified copy of the emergency protective
15 order, probable cause affidavit, or charging information, if
16 available, to the temporary orders application; and

17 4. A temporary restraining order. If the court finds on the
18 basis of a verified application and testimony of witnesses that
19 irreparable harm will result to the moving party, or a child of a
20 party if no order is issued before the adverse party or attorney for
21 the adverse party can be heard in opposition, the court may issue a
22 temporary restraining order which shall become immediately effective
23 and enforceable without requiring notice and opportunity to be heard
24 to the other party. Provided, for the purposes of this section, no

1 minor child or children temporarily residing in a licensed,
2 certified domestic violence shelter in the state shall be removed by
3 an ex parte order. If a temporary restraining order is issued
4 pursuant to this paragraph, the motion for a temporary order shall
5 be set within ten (10) days, but such hearing shall not be heard
6 unless five (5) days' notice of hearing is given to the other party.

7 C. Any temporary orders and the automatic temporary injunction,
8 or specific terms thereof, may be vacated or modified prior to or in
9 conjunction with a final decree on a showing by either party of
10 facts necessary for vacation or modification. Temporary orders and
11 the automatic temporary injunction terminate when the final judgment
12 on all issues, except attorney fees and costs, is rendered or when
13 the action is dismissed. The court may reserve jurisdiction to rule
14 on an application for a contempt citation for a violation of a
15 temporary order or the automatic temporary injunction which is filed
16 any time prior to the time the temporary order or injunction
17 terminates.

18 D. Upon granting a decree of dissolution of marriage, annulment
19 of a marriage, or legal separation, the court may require either
20 party to pay such reasonable expenses of the other as may be just
21 and proper under the circumstances.

22 E. The court may in its discretion make additional orders
23 relative to the expenses of any such subsequent actions, including
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1 but not limited to writs of habeas corpus, brought by the parties or
2 their attorneys, for the enforcement or modification of any
3 interlocutory or final orders in the dissolution of marriage action
4 made for the benefit of either party or their respective attorneys.

5 SECTION 2. It being immediately necessary for the preservation
6 of the public peace, health or safety, an emergency is hereby
7 declared to exist, by reason whereof this act shall take effect and
8 be in full force from and after its passage and approval.

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